

Babu Lal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 May 2019 · Writ-C No. 17349 of 2019 · **Writ disposed; licensee to consider new connection under Annexure 4.2, indemnity if needed.**

HEADNOTE

A new domestic connection withheld for want of ownership proof and a co-owner's no-objection while a partition suit was pending was not granted or refused on the merits. The Court disposed of the writ by directing the third respondent to consider the application in accordance with law, specially Annexure 4.2 of the U.P. Electricity Supply Code, 2005, most expeditiously (if possible within one month), if necessary on an indemnity bond.

FACTUAL SUMMARY

Babu Lal applied for a new domestic electricity connection at house no. 33/204-16, Chandua Chitupur, Varanasi. The licensee did not sanction it because he produced no proof of ownership and persons claiming to be owners objected. He asserted co-ownership and pointed to pending partition suit no. 572 of 2015 before the Civil Judge (Junior Division), Varanasi, against respondent no. 5, which he said made a co-owner's no-objection unobtainable. Counsel for Purvanchal Vidyut Vitran Nigam Limited submitted that the application could be considered under Annexure 4.2 of the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Annexure 4.2

new connection — disputed ownership / indemnity bond

HOLDING

Where a new domestic connection is withheld for want of ownership proof and a co-owner's no-objection during a pending partition suit, the licensee is to consider the application in accordance with law, specially Annexure 4.2 of the U.P. Electricity Supply Code, 2005, most expeditiously, if necessary by requiring an indemnity bond. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A new domestic connection withheld for want of ownership proof and a co-owner's no-objection while a partition suit was pending was not granted or refused on the merits.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF ENTITLEMENT AND OWNERSHIP

The Court did not decide whether the petitioner is a co-owner or whether the objectors validly blocked the connection; it only directed consideration under Annexure 4.2. ¶ 1